



POLICE DEPARTMENT

April 17, 2019

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In the Matter of the Charges and Specifications :

- against - :

Detective Lawrence Thomas :

Case No.

Tax Registry No. 947541 :

2017-17641

33rd Precinct :

Detective Rashied McIntyre :

Case No.

Tax Registry No. 947807 :

2017-17638

Narcotics Borough Manhattan North :

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB:

Jeannie Elie, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondents:

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To:
HONORABLE JAMES P. O'NEILL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

Disciplinary Case No. 2017-17641

1. Said Police Officer Lawrence Thomas, on or about December 27, 2016, at approximately 1530 hours, while assigned to the Narcotics Borough Manhattan North Unit¹ and on duty, across from² 121 Hells Gate Circle, New York County, abused his authority as a member of the New York City Police Department, in that he stopped Derrick Jordan without sufficient legal authority.

P.G. 212-11, Page 4, Paragraph 16 ABUSE OF AUTHORITY – STOP

2. Said Police Officer Lawrence Thomas, on or about December 27, 2016, at approximately 1530 hours, while assigned to the Narcotics Borough Manhattan North Unit and on duty, across from 121 Hells Gate Circle, New York County, abused his authority as a member of the New York City Police Department, in that he stopped Jonathan Morales without sufficient legal authority.

P.G. 212-11, Page 4, Paragraph 16 ABUSE OF AUTHORITY – STOP³

Disciplinary Case No. 2017-17638

1. Said Police Officer Rashied McIntyre, on or about December 27, 2016, at approximately 1530 hours, while assigned to the Narcotics Borough Manhattan North Unit and on duty, across from 121 Hells Gate Circle, New York County, abused his authority as a member of the New York City Police Department in that he stopped Derrick Jordan without sufficient legal authority.

P.G. 212-11, Page 4, Paragraph 16 ABUSE OF AUTHORITY – STOP

2. Said Police Officer Rashied McIntyre, on or about December 27, 2016, at approximately 1530 hours, while assigned to the Narcotics Borough Manhattan North Unit and on duty, across from 121 Hells Gate Circle, New York County, abused his authority as a member of the New York City Police Department in that he stopped Jonathan Morales without sufficient legal authority.

P.G. 212-11, Page 4, Paragraph 16 ABUSE OF AUTHORITY – STOP

¹ The Tribunal has corrected the language in the original charging sheet, which listed Respondent Thomas's command at the time of the incident as the 33rd Precinct Detective Squad.

² The Tribunal has removed the words "in the vicinity of," which appeared in all specifications in the original charging sheet, as this language was duplicative of the phrase "across from."

³ The Tribunal has removed the word "authorizing" from Respondent Thomas's Specification 2 and Respondent McIntyre's Specifications 1 and 2, as the Respondents were not acting in a supervisory role at the time of the incident.

REPORT AND RECOMMENDATION

The above-named members of the Department appeared before me on January 22, 2019 and February 6, 2019. Respondents, through their counsel, entered pleas of Not Guilty to the subject charges. The CCRB called civilians Jonathan Morales and Derrick Jordan, and Lieutenant Darrien King of the 40th Precinct as witnesses. Respondents testified on their own behalves. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having reviewed all of the evidence in this matter, I find Respondents Guilty of the charged misconduct and recommend a penalty of four vacation days.

ANALYSIS

The following is a summary of the facts which are not in dispute. On December 27, 2016, Respondents Lawrence Thomas and Rashied McIntyre were assigned to Manhattan North Narcotics. At about 1530 hours on that date, they had concluded "buy-and-bust" operations in the vicinity of Clark Thomas Men's Shelter, a homeless domiciliary located on Wards Island, and were *en route* to their command. Respondents were traveling in a Department vehicle accompanied by Police Officer Adeleke, another member of their Narcotics unit.

At about the same time, Jonathan Morales and Derrick Jordan were walking in the vicinity of the homeless domiciliary toward a bus stop located on Hell Gate Circle. After they arrived at the bus stop, Morales and Jordan had an encounter with Respondents, the nature of which is in dispute. Lieutenant (then-Sergeant) King arrived at the bus stop sometime after the initiation of the encounter. After a brief conversation with Police Officer Adeleke, Lieutenant King directed Respondents to terminate the encounter and return to their command.

At issue in this case is whether Respondents stopped Morales and Jordan without lawful authority.

Jonathan Morales testified that on December 27, 2016, at approximately 1530 hours, he and his friend, Derrick Jordan, were walking toward a bus stop on Wards Island, near the Clark Thomas Men's Shelter (T. 11). According to Morales, he and Jordan had traveled to the shelter, where he was previously domiciled, to retrieve clothing which had been stored. (T. 9-10, 36). Morales left the shelter that afternoon with two bags of clothing, which he intended to put in a storage locker leased by Jordan (T. 10). As they walked from the Men's Shelter, Morales and Jordan walked through a grassy area, which Morales described as a short cut to the bus stop (T. 19-20).

At about that time, Morales and Jordan arrived at the bus stop, where they waited for the M35 bus to arrive (T. 37). As they waited for the bus, Morales saw a car, which he believed to be an unmarked police vehicle based upon the presence of an antenna in the rear, pull up to the bus stop (T. 13). One of the individuals inside the car told him to "freeze" (*Id.*). Four individuals, whom Morales believed to be police officers in plain clothes, stepped out of the vehicle and walked toward him (T. 14, 21, 23). The police officers told Morales that they saw the men throw something and wanted to know what they had thrown, where they were going and what they were doing (T. 14). As Morales told the officers that he was not doing anything, one officer stood directly in front of him and another stood near his left shoulder (*Id.*). Jordan was standing on Morales' right side (T. 14-15). According to Morales, he raised his hands over his head because he felt that he was being detained (T. 15). Morales conceded that he took this action of his own volition and was not directed to do so by any of the police officers who were present (*Id.*, 25). Morales claimed further that he kept his hands on his head for the entire encounter with Respondents (T. 16). Morales claimed further that the police officers reached into his pocket to retrieve his identification (*Id.*).

Morales testified that eventually a second police car arrived on the scene and four additional police officers exited from it (T. 17). These police officers went into the field behind the bus stop and assisted the first group of officers in searching for something (*Id.*). While the search continued, there were police officers standing in front of Morales and Jordan; Morales stated that he did not feel free to leave (T. 18). Morales later testified that he was told by one of the police officers that he could not leave (T. 25).

While Morales conceded on cross-examination that he was a cigarette smoker, he denied that he was smoking at the time he was allegedly stopped by Respondents and further claimed that he had no cigarettes on his person (T. 20-21). Morales also denied that Jordan was speaking on his mobile telephone during the encounter, but conceded that Jordan had been on the phone with a female friend as the police officers approached them and that he ended the call (T. 27, 30).

Morales admitted that he had previously been convicted of Theft of Services in 2012 for passing through a subway turnstile without paying the fare (T. 32). He also conceded that he was angry after the encounter because he felt that his rights had been violated by being accused of something that he had not done (T. 33, 35).

Derrick Jordan testified that on December 27, 2016, at about 1530 hours, he was on Wards Island, having traveled there with his friend, Jonathon Morales (T. 41). He and Morales planned to retrieve Morales' clothing from the Men's Shelter there, where it had been stored, then transport it to Jordan's storage locker, where it would remain (*Id.*). Jordan described the clothing as being stored in two clear, plastic bags (T. 41-42). According to Jordan, he and Morales each carried one bag (T. 42). They walked approximately 1000 feet from the Men's Shelter to a bus stop where they planned to take a bus back to 125th Street (*Id.*). Their path to the bus stop took them through an open space Jordan described as a field (*Id.*). Once they arrived at the bus stop, they placed the plastic bags on the ground as they waited for their bus (T. 43).

As they stood at the bus stop, an unmarked car drove up and stopped; four people dressed in civilian clothing then stepped out of the car (T. 44). Jordan testified that he was somewhat wary of the four people but he relaxed when he observed a shield on one of their waists (*Id.*). According to Jordan, "they" told Morales that he was under investigation and that he had to stand there and wait (*Id.*). Jordan described the police officers' positions as "surround[ing] us" (*Id.*). Another unmarked car eventually drove up to the bus stop and discharged more police officers (T. 45). One of the police officers approached Jordan and told him that he was under investigation, that they were going to search "the other" and that they had observed Morales throw something (T. 45). Jordan denied seeing Morales throw an object, claiming that he had nothing in his hands except one of the bags they were carrying (*Id.*).

Jordan testified that while none of the officers asked him for identification, they did take his identification from him by reaching into his pocket without his consent (T. 46). Jordan later testified on cross-examination that the police officer who removed his identification from his pocket touched his testicles (T. 57). Jordan described the police officer who reached into his pocket as a male wearing "dreads"⁴ (T. 56). He was unable to identify either Respondent as the police officer who conducted the search (T. 63-64).

Jordan claimed that he kept his hands at his side during the encounter, while Morales placed his over his head (T. 46-47). Jordan testified that he felt that he was not free to leave because the police officers had told him that he was under investigation and none of them had told him that he could leave (T. 48). Jordan conceded that while none of the officers told him that he could not leave, he was surrounded by them, making leaving the scene impractical (T. 48-49).

⁴ The Tribunal takes judicial notice that "dreads" refers to dreadlocks, a hairstyle involving matting and/or braiding of hair into ropelike strands.

On cross-examination, Jordan admitted that he was a smoker but claimed that neither he nor Morales were smoking as they walked to the bus stop (T. 50-51). He stated that there was a sergeant with the police officers because Morales had asked the sergeant to show him his badge (T. 52). Jordan conceded that the encounter upset him and testified that he called 311 to make a CCRB complaint as soon as the police officers departed the bus stop (T. 59, 61, 63).

Respondent Rashied McIntyre testified that at about 1530 hours, while traveling back to his command from Wards Island, he observed a male smoking what he believed to be a marihuana cigarette (T. 69, 77, 81, 86). He made this observation as the police vehicle he was in drew closer to a bus stop where the male was standing (*Id.*). As the police vehicle drew ever closer, Respondent McIntyre asserted that he saw the male throw the cigarette to his side (*Id.*, 77, 79, 82). He recalled that one other occupant of the vehicle he was riding in commented that the male was smoking but he was unable to recall who made the statement (T. 70, 76-77).

Respondent McIntyre recalled seeing two individuals standing at the bus stop, but was unable to recall if Morales and Jordan, who testified before the Tribunal, were the same two individuals he saw on December 27, 2016 (T. 70).

Respondent McIntyre's vehicle came to a stop at the bus stop and he stepped from it, along with another police officer (*Id.*). According to him, they began searching the area near the bus stop for the marihuana cigarette; after searching the area for two to three minutes, they returned to their police vehicle (T. 70-71, 82-83). Respondent McIntyre denied ever telling the individuals at the bus stop that they were not free to leave or telling them to place their hands above their heads (T. 71). He denied ever saying, "Freeze, police," or asking the individuals to produce identification (*Id.*). Respondent McIntyre denied ever seeing identification handed over by an individual or removed from one of the individual's pockets during a search (T. 71-72). He denied ever conducting a search or observing another policer officer conduct a search that

involved reaching into one of the individual's pants and touching their private parts (T. 72).

Finally, he testified that his hairstyle on December 27, 2016 was a bald head, just as it was on the date of his testimony before the Tribunal (*Id.*).

Respondent McIntyre, on both direct and cross-examination, asserted that he barely remembered the events of December 27, 2016 (T. 68, 70). On cross-examination, he clarified that he observed what appeared to be a marihuana cigarette, or some other narcotic item, explaining that what he observed could have also been a PCP cigarette (T. 79-80). Respondent McIntyre testified that he did not think that what he observed was a tobacco cigarette because of the unique manner in which the cigarette was held by the individual and brought to his lips (T. 80-81).

Respondent McIntyre denied seeing any plastic bags near the individuals he saw at the bus stop and further denied ever asking those individuals if they had been smoking; he later testified that he recalled one of his fellow police officers asking the individuals if they had been smoking (T. 86, 90). He testified further that he did not speak to either individual (T. 93).

Respondent Lawrence Thomas testified that on December 27, 2016, he was working with Respondent McIntyre and Police Officer Adeleke (T. 101). While he recalled that the team supervisor that day was then-Sergeant King, he did not recall the names of any other members of his team, as he was a substitute that day (*Id.*). Respondent Thomas claimed that at about 1530 hours, he observed two males walking through a field; he then observed smoke and each of the two males holding one hand in front of their mouths and their other hands cupping that hand, in a manner which was consistent with someone using a narcotic or narcotic-related paraphernalia (T. 103, 118, 128). He then told Police Officer Adeleke, "Drive over to the field; I want to get a closer look"; after she turned the car toward the field, he saw the two males emerge from it (T. 105, 106, 117).

According to Respondent Thomas, he stepped from his vehicle with his shield displayed; as he drew closer to the two men, he observed one of them make a hand motion as if he were throwing or discarding something in the direction of the field (T. 106-107, 108, 110, 125). He continued walking toward them, focusing his attention on the area of the field where he thought the discarded item may have been (T. 109). The men asked him what was going on and he replied that he was conducting an investigation (T. 110). He then said that he was looking for something and one of the men asked him what he was looking for; at that point, Respondent Thomas asked the men whether they had been smoking (T. 112). Neither man responded at first but eventually they denied doing so (*Id.*).

Respondent Thomas denied telling the men that they were not free to leave; asking them for identification; searching them; or directing them to put their hands behind their heads (T. 110-111, 125). According to Respondent Thomas, Respondent McIntyre, as well as Police Officer Adeleke, stepped from their vehicle to assist him in searching for the unknown discarded item (T. 111). He denied that either he or Police Officer Adeleke wore their hair in dreadlocks on that date (T. 111-112). Respondent Thomas testified further that a second police car, in which then-Sergeant King was a passenger, pulled up to their location but he denied that he or anyone in his vehicle issued a radio communication calling for the second car to respond (T. 113-114). He did not recall seeing any plastic bags near the individuals at the bus stop (T. 115, 126).

Respondent Thomas conceded on cross-examination that he could not see whatever may have been in the hands of the individuals he observed walking through the field (T. 118, 123). He denied that he and Respondent McIntyre were ever standing in the bus stop area at the same time (T. 122). While Respondent Thomas also denied standing in front of the individuals as Respondent McIntyre stood behind them, he acknowledged that in his April 12, 2017, statement

to CCRB he stated that he had, in fact, "stood in front of them as McIntyre was in the back" (T. 124).

Lieutenant Darrien King testified that about 1530 hours on December 27, 2016, he was the module supervisor conducting "buy-and-bust" operations on Wards Island (T. 6). At about that time, he and the members of his module were leaving the island when he received a radio transmission on a point-to-point network stating, "Person stopped" (T. 7). While Lieutenant King did not recall who made the radio transmission, he recalled that the transmission included a location (T. 8). When Lieutenant King and the other passengers in his car, Detectives Rivera and Abreu, arrived at the bus stop two to three minutes later, he observed Respondent McIntyre, Respondent Thomas and Police Officer Adeleke "with two male individuals stopped" (T. 9, 18). According to Lieutenant King, "my officer, they was [sic] – they was also standing in close proximity to them"; he also recalled seeing a backpack on the ground (T. 9). He described the individuals as having a police officer on each side of them (T. 11). Lieutenant King did not recall seeing any large plastic bags of clothing (T. 15).

According to Lieutenant King, the individuals were standing with their hands at their sides and he denied ever seeing either of the individuals with their hands above their heads (T. 14). He also denied that Respondent Thomas, Respondent McIntyre or Police Officer Adeleke wore dreadlocks on that date (T. 16-17).

Lieutenant King testified that once he stepped from his car, Police Officer Adeleke approached him and explained "the circumstances of the stop, explained to me that they observed what appeared to be a narcotics transaction, but it ended up being negative" (T. 10, 19). He then "directed them to release the individuals" (*Id.*). Lieutenant King then returned to his car and departed Wards Island (*Id.*). Lieutenant King stated that while the individuals were not handcuffed they did not appear to be free to leave (*Id.*, 12, 19).

Lieutenant King pled guilty to Departmental charges which accused him of failure to adequately supervise an unlawful frisk of Jonathan Morales, and two counts of failure to adequately supervise unlawful searches of Jonathan Morales and Derrick Jordan (T. 12). He acknowledged that while he did not personally witness the frisk of Jonathan Morales, or searches of Jonathan Morales or Derrick Jordan, he was accountable for the acts of those officers who were operating under his supervisory authority (T. 14-15, 21-22, 23).

I find Lieutenant King's testimony credible under the totality of the circumstances presented. His demeanor at trial, as well as the substance of his testimony, evinced a desire to be forthcoming with the Tribunal. In addition, his willingness to concede unflattering facts imbue his testimony with the ring of truth. I find that having already pled guilty to failure to adequately supervise Respondents during the incident in question, he is more likely than not to have been candid in his recitation of the material facts, since he previously conceded his own responsibility for Respondents' conduct. I do not find plausible Counsel for Respondent's argument that Lieutenant King pled guilty to Departmental charges simply as a means of removing a bar to promotion to his current rank.

I find both Morales and Jordan more credible than not, despite several issues with their veracity. I find that Morales and Jordan likely embellished certain collateral facts, such as the number of police officers which emerged from Respondents' vehicle and whether Jordan was groped by one of the officers, raising questions about their reliability. Jordan was specifically asked by the Tribunal whether either Respondent groped him in the manner he described: he denied that either Respondent was that officer. Nevertheless, I credit the portions of their respective testimonies regarding the material facts (i.e., the circumstances of the alleged stop) because that testimony was corroborated by the credible testimony of Lieutenant King.

I find the testimonies of both Respondents to have limited probative value. Both Respondents conceded at the outset that their recollection of the incident in question was dimmed by the passage of time. Respondent McIntyre testified that he could not even be sure that Morales and Jordan, who appeared in court to testify in his presence, were the same individuals he encountered on December 27, 2016.

Respondent Thomas made a prior inconsistent statement during his CCRB interview which conflicted with his in-court testimony. In his trial testimony, Respondent Thomas denied standing in front of the individuals as Respondent McIntyre stood behind them; in his statement to CCRB, he took the opposite position, conceding that he had “stood in front of them as McIntyre was in the back.” Respondent Thomas’ assertion that neither he nor anyone in his car made a radio transmission requesting the presence of Lieutenant King was directly contradicted by Lieutenant King, who testified unhesitatingly that he received a radio communication requesting that he respond to the bus stop.

I find that CCRB has established by a preponderance of the credible, relevant evidence that Respondents stopped Jonathan Morales and Derrick Jordan without sufficient legal authority.

First, I find that the action taken by Respondents, in coordination with each other, was tantamount to a seizure under the Fourth Amendment. A seizure under the Fourth Amendment, characterized in this case as a “Level 3 stop,” occurs when there is a significant interruption in a person’s liberty or movement (*People v. De Bour*, 40 N.Y.2d 210, 216 [1976]). Before a police officer may stop a person in a public place, he must have reasonable suspicion that the suspect has committed, is committing or is about to commit a crime (*People v. Brannon*, 16 N.Y.3d 596, 601 [2011] citing *People v. De Bour*, 40 N.Y.2d 210; Patrol Guide 212-11, ¶20).

Morales testified that four police officers stepped out of a car after calling out "Freeze," then two of those officers stood in front of him and at his side (T. 13-14). Jordan testified that four people stepped from a vehicle and "surrounded" him (T. 44, 48-49). Counsel for Respondents' arguments that: (1) there was no stop; and (2) even if there had been a stop, that Respondents were not the police officers who effected it, are soundly rebutted by Lieutenant King's testimony.

Lieutenant King testified that he received a radio communication of "person stopped," and a location; when he proceeded to that location, he observed "two individuals stopped," standing at a bus stop "in close proximity to" three police officers from his narcotics team: Respondent McIntyre, Respondent Thomas and Police Officer Adeleke (T. 9). When Lieutenant King emerged from his vehicle, Police Officer Adeleke described to him the circumstances of the stop (*Id.*).

Based upon the foregoing evidence, I find that Respondents stopped Morales and Jordan.

The next question is what quantum of information Respondents possessed regarding possible criminal activity by either Morales or Jordan prior to effecting the stop described above. Respondent McIntyre testified that he observed a male smoking what he believed to be a marihuana cigarette. Respondent Thomas testified that he observed two males with their hands cupped over their mouths in a manner which suggested that they were smoking a narcotic or using narcotic-related paraphernalia. Respondent Thomas also claimed to have observed one of the men make a motion with his hand as if to throw whatever was in his hand away. It is notable that neither Respondent asserted that they saw something that looked like a marihuana cigarette. While it is within the realm of possibility that either Morales or Jordan did have a marihuana cigarette in their hand at some point, Respondents' beliefs at the time the men were stopped amounted to little more than speculation, falling well below the standard of reasonable suspicion.

Based upon the foregoing, I find that Respondents stopped Morales and Jordan without sufficient legal authority; accordingly, I find Respondent McIntyre Guilty of Specifications 1 and 2 of Disciplinary Case No. 2017-17638. I further find Respondent Thomas Guilty of Specifications 1 and 2 of Disciplinary Case No. 2017-17641.

PENALTY

In order to determine an appropriate penalty, Respondents' service records were examined (*See Matter of Pell v. Board of Educ.*, 34 N.Y.2d 222, 240 [1974]). Respondent Thomas was appointed to the Department on July 8, 2008. Respondent McIntyre was appointed to the Department on July 21, 2008. Information from their personnel records that was considered in making this penalty recommendation is contained in attached confidential memoranda.

CCRB has recommended a penalty of the loss of five vacation days. Respondents in previous cases have forfeited from three to five vacation days for stopping an individual without sufficient legal authority (*Disciplinary Case No. 2015-14036* [May 23, 2017])[Eighteen-year sergeant with no prior disciplinary record forfeited five (5) vacation days for (i) stopping an individual without sufficient legal authority, (ii) stopping a second individual without sufficient legal authority, and (iii) entering a house without sufficient legal authority. Respondent observed a man he knew to be a suspect in two robbery patterns with a second man, unknown to Respondent, standing on the sidewalk. Respondent's partner rolled down the window of the unmarked vehicle they were driving and called out to the known man. Both men started to run towards the steps to a nearby home. Respondent and his partner chased after them on foot. Respondent's assertion that he believed he was witnessing a robbery attempt was not supported by articulable observations consistent with such an attempt. Therefore, the information Respondent had at the time did not rise to the objective level required to even make a request for

information and the stop of the two men was not justified]; *Disciplinary Case Nos. 2015-14923*

& 2015-14924 [March 28, 2017][Five-year police officer, with no prior disciplinary history, forfeited three (3) vacation days for stopping an individual without sufficient legal authority. Nine-year detective, with no prior disciplinary history, forfeited six (6) vacation days for (i) stopping an individual without sufficient legal authority; (ii) entering an apartment without sufficient legal authority and (iii) damaging a civilian's property without sufficient legal authority. Respondents, assigned to anti-crime, observed suspicious behavior from two individuals, a female and a male. The officers alleged that as they drove by, the male darted into a possibly abandoned house upon noticing their vehicle, while the woman remained outside, appearing to be acting as a lookout. After circling the block multiple times, Respondents stopped in front of the house and the woman ran inside. Believing she possessed a firearm, they pursued her inside and ultimately arrested her boyfriend, who confessed to marijuana possession. The entry was deemed unlawful, as the officers lacked probable cause that the woman possessed a firearm and thus were unjustified in pursuing her into the private home, even though they may have been reasonable in considering her behavior suspicious. Though they reported noticing a slight bulge, they did not see a firearm or even an object in the shape of a gun and they were not responding to a firearm call]).

Based upon the foregoing, I recommend that Respondent Thomas and Respondent McIntyre each forfeit four vacation days.

APPROVED

JUL 15 2018
JAMES P. O'NEILL
POLICE COMMISSIONER

Respectfully submitted,

Paul M. Gamble
Assistant Deputy Commissioner Trials

[Handwritten signature]

APPROVED
JAMES P. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
DETECTIVE LAWRENCE THOMAS
TAX REGISTRY NO. 947541
DISCIPLINARY CASE NO. 2017-17641

Respondent was appointed to the Department on July 8, 2008. On his last three performance evaluations, he received a 4.5 overall rating of “Extremely Competent/Highly Competent” in 2018 and a 4.0 overall rating of “Highly Competent” in 2016 and 2017. [REDACTED]

He has received two medals for Excellent Police Duty and two medals for Meritorious Police Duty.

Respondent has no formal disciplinary history.

For your consideration,

Paul M. Gamble
Assistant Deputy Commissioner Trials



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: CONFIDENTIAL MEMORANDUM
DETECTIVE RASHIED MCINTYRE
TAX REGISTRY NO. 947807
DISCIPLINARY CASE NO. 2017-17638

Respondent was appointed to the position of Police Officer on July 21, 2008. On his last three performance evaluations, he received a 4.0 overall rating of "Highly Competent" in 2016, 2017, and 2018. [REDACTED]

[REDACTED] He has been awarded four medals for Excellent Police Duty and seven medals for Meritorious Police Duty.

Respondent has no formal disciplinary history.

For your consideration.

Paul M. Gamble
Assistant Deputy Commissioner Trials